

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

20th CONGRESS
First Regular Session



HOUSE BILL NO. 5486

Introduced by **REP. JUAN CARLOS "ARJO" C. ATAYDE**

AN ACT
PROVIDING FOR THE FAIR USE OF SOCIAL MEDIA, ARTIFICIAL
INTELLIGENCE AND INTERNET TECHNOLOGY FOR THE HOLDING OF
FREE, ORDERLY, HONEST, PEACEFUL AND CREDIBLE ELECTIONS

EXPLANATORY NOTE

In recent years, technology—particularly social media, has profoundly transformed the dynamics of communication, information dissemination, and public discourse. This digital shift presents immense opportunities to enhance political participation and promote greater transparency in the electoral process.

Citizens now have unprecedented access to information and platforms for civic engagement, enabling more inclusive and participatory governance. Notably, these advancements have also brought new challenges and risks, such as the spread of misinformation, data manipulation, and online harassment, which threaten the integrity of democratic institutions and public trust.

A recent study found that a majority of Filipinos struggle to detect fake news, and surveys identify the internet and social media, particularly through influencers, as the primary sources of disinformation. This is a concerning combination, given that Filipinos are among the top social media users globally.¹ This reality underscore the need for comprehensive policies that leverage the benefits of digital technology while safeguarding the credibility of electoral and governance systems.

The country's primary election law, the Omnibus Election Code (Batas Pambansa Blg. 881), was enacted long before the rise of social media and modern

¹ Snapshot GenAI and Electoral Disinformation The Case of the Philippines Mendoza, Arugay, Okthariza 2024

frameworks to ensure they remain responsive to the realities of the digital age. Meanwhile, the Fair Elections Act (Republic Act No. 9006) allows election propaganda through traditional media and “any other medium,” subject to authorized spending limits, truth in advertising, and supervision by the Commission on Elections (COMELEC).² This provision has served as the legal basis for COMELEC to regulate digital media. However, the absence of clear statutory definitions and mechanisms addressing modern digital offenses has made enforcement inconsistent and prosecution difficult. These gaps emphasize the urgency of strengthening safeguards to protect electoral integrity amid the growing influence of technology on public opinion and voter behavior.

Therefore, this proposed bill seeks to establish a clear and comprehensive framework for regulating digital and online election activities to uphold transparency, fairness, and accountability throughout the electoral process. It aims to empower the Commission on Elections (COMELEC) with the necessary tools and authority to address emerging challenges in the digital sphere, such as online misinformation, disinformation, data manipulation, and the misuse of artificial intelligence in political campaigns.

By strengthening institutional mechanisms and updating existing policies, this bill envisions a more secure and credible electoral environment that fully adapts to the realities of modern communication technologies while safeguarding the integrity of the nation’s democratic processes.

In view of the foregoing, the immediate passage of this bill is earnestly sought.

REP. JUAN CARLOS “ARJO” C. ATAYDE

² REPUBLIC ACT NO. 9006, Fair Election Act. (February 12, 2001)

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1 *Be it enacted by the Senate and House of Representatives of the Philippines in Congress*
2 *Assembled:*

3 **SECTION 1. *Short Title.*** This Act shall be known as the "*Social Media, Artificial*
4 *Intelligence and Internet Technology Regulation for Fair Elections Act*".

5 **SEC. 2. *Declaration of Policy.*** - The State shall, during the election period,
6 supervise and regulate the privileges granted under franchises or permits for the
7 operation of the internet and social media communication or information, as well as
8 the use of artificial intelligence, and provide for their prohibition and punishment in
9 case of misuse, to guarantee equal opportunity for public service, including access to
10 internet and social media time and space; the equitable right to reply, for public
11 information campaigns and fora among candidates; and assure free, orderly, honest,
12 peaceful and credible elections.

13 The State shall ensure that candidates for any public office shall be free from
14 any form of online harassment and discrimination.

15 **SEC. 3. *Definition of Terms.*** - As used in this Act:

- 1 (a) **Artificial Intelligence Technology** - refers to computer systems or machines
2 that simulate human intelligence processes with focus on learning,
3 reasoning, problem solving, perception, use of language, and image
4 manipulation influencing real or virtual environments;
- 5 (b) **Astroturfing** - refers to a practice designed to mask the source of a message
6 so that it appears as though it has broad support from grassroots
7 participants, rather than originating from a small group or organization.
- 8 (c) **Blog and collective blog** - refer to websites on which an individual or group
9 of users, respectively, record news, opinions, and information, in varying
10 degrees of regularity. A "micro-blog" refers to a blogging format which
11 allows users to exchange small elements of content - referred to variously as
12 posts, entries or status updates - such as short sentences, individual images,
13 or links to video material uploaded to the internet;
14
- 15 (d) **Bots (abbreviation for robot/ s)** - refers to a software program or computer
16 system designed to perform automated, repetitive, pre-defined tasks on the
17 internet often used on social media to simulate or imitate human user
18 behavior.
- 19 (e) **Candidate** - refers to any person seeking an elective public office, who has a
20 certificate of candidacy, and who has not died, withdrawn the certificate of
21 candidacy, nor the certificate of candidacy denied due course or cancelled, or
22 has been otherwise disqualified before the start of the campaign period for
23 which the certificate of candidacy was filed: *Provided, That*, unlawful acts or
24 omissions applicable to a candidate shall take effect only upon the start of the
25 aforesaid campaign period. It also refers to any registered national, regional,
26 or sectoral party, organization or coalition thereof that has filed a
27 manifestation of intent to participate under the party-list system, which has
28 not withdrawn the said manifestation, or which has not been disqualified
29 before the start of the campaign period;

- 1 (f) *Cheapfakes* - refer to forms of visual disinformation for which authentic
2 images or videos are re-contextualized to deliberately alter their meaning.
- 3 (g) *Contractors and business firms* - refer to persons, natural or juridical, or
4 firms to whom the electoral expenditure is paid or due for payment in
5 accordance with Section 112 of the Omnibus Election Code, including media
6 entities, media outlets, internet and social media platforms, advertising
7 agencies, public relations firms and other intermediaries, event organizers,
8 talent endorsers and their managers, digital influencers, and printing press
9 for the purpose of entering into political advertisement contracts. "Social
10 media associates" refer to contractors whose primary duty is to promote the
11 election or defeat of any candidate through social media interactions and
12 engagement;
- 13 (h) *Coordinated inauthentic behavior* - refers to deliberate and coordinated
14 actions carried out by individuals, groups, or organizations to deceive or
15 mislead the public by spreading false, misleading, or manipulated
16 information online, typically involving automated or semi- automated
17 means.
- 18 (i) *Deepfakes* - refer to digitally manipulated images, videos, or audio files
19 created using artificial intelligence to fabricate realistic representations of
20 people, events, or statements and falsely make it appear that an action,
21 statement, or event transpired but did not occur in reality.
- 22 (j) *Disinformation* - refers to false information that is spread, or information
23 that is based on fact, but removed from its original context and is maliciously
24 manipulated, and used in a partisan political activity or digital election
25 campaign, with the intent to mislead, harm, or manipulate public opinion or
26 voter behavior.
- 27 (k) *Election campaign or partisan political - activity* refers to an act designed to
28 promote the election or defeat of a particular candidate or candidates to a
29 public office, and shall include any of the following:

1 i. Forming organizations, associations, clubs, committees or other
2 groups of persons for the purpose of soliciting votes and/or
3 undertaking any campaign for or against a candidate;

4 ii. Creating on any social media platform, user groups or community
5 pages, for the purpose of conducting campaigns or related partisan
6 political activity;

7 iii. Holding political caucuses, conferences, meetings, rallies, parades or
8 other similar assemblies for the purpose of soliciting votes and/or
9 undertaking any campaign or propaganda for or against a candidate;

10 iv. Making speeches, announcements or commentaries, or holding
11 interviews for or against the election of any candidate for public
12 office;

13 v. Publishing, displaying or distributing campaign literature or
14 materials designed to support or oppose the election of any
15 candidate; or

16 vi. Directly or indirectly soliciting votes, pledges or support for or
17 against any candidate

18 (l) ***Electoral ads and electoral posts*** - refer to advertisements and social media
19 posts that have for their primary purpose the promotion of the victory or
20 defeat of a candidate;

21 (m) ***E-rally*** - refers to a rally under Article X of the Omnibus Election Code
22 which is conducted for an online audiences;

23 (n) ***Fake news*** - refers to the colloquial, collective, and common term used by
24 ordinary Filipinos to refer to misinformation, malinformation, or
25 disinformation deliberately presented as legitimate news and disseminated
26 through digital platforms, traditional media, or other communication

1 channels, with the intent to deceive, mislead, or manipulate public opinion
2 or voter behavior.

3 (o) *Fake social media accounts* - refers to social media profiles created using
4 false, misleading, or inauthentic identities, or otherwise manipulated to
5 deceive users into believing they are interacting with genuine individuals or
6 entities, often with the intent to mislead, manipulate, or influence public
7 opinion or voter behavior.

8 (p) *False amplifiers* - refer to entities or mechanisms that artificially increase the
9 visibility or reach of digital partisan or political messages or narratives,
10 typically through the use of bots, fake accounts, or organized networks on
11 social media platforms or other online channels.

12 (q) *Hyperactive users* - refer to inauthentic individuals who engage in
13 disproportionately high levels of activity on online platforms, including
14 posting, sharing, or interacting with content at a significantly higher rate
15 than the average user, with the intent to distort or manipulate online
16 discourse or influence public perception using misinformation, or
17 disinformation.

18 (r) *Internet technology* - refers to hardware, software, protocols, and services
19 that enable the transmission, processing, and exchange of data and
20 information over the web;

21 (s) *Livestreaming* - refers the live broadcasting of an event over the internet;

22 (t) *Microtargeting* - refers to a form of targeting online advertisements that
23 uses recent technological developments to analyze a person's online usage,
24 to preferentially serve advertisements and other information that
25 specifically reflect that individual user's preferences and personality;

26 (u) *Misinformation* - refers to false or inaccurate information that is spread in a
27 partisan political activity or digital election campaign, regardless of whether
28 there is intent to mislead.

1 (v) *Online campaigning* - refers to the use of the internet to distribute campaign
2 propaganda. This includes text-only posts on social media, pictures, audio
3 clips, and video clips, regardless of duration, and all combinations of such
4 formats;

5 (w) *Party* - refers to either a political party, whether national or sectoral party,
6 or a coalition of parties, and party-list organizations duly
7 registered/accredited with the Commission on Elections (COMELEC);

8 (x) *Podcast* - refers to a radio program that is stored in a digital form that can
9 be streamed live and downloaded from the internet and stored and played
10 on a computer or on a cell phone.

11 (y) *Political advertisement or election propaganda* - refers to any matter
12 broadcasted, published, printed, displayed or exhibited, in any medium,
13 which contains the name, image, logo, brand, insignia, initials, and other
14 symbol or graphic representation that is capable of being associated with a
15 candidate, and is exclusively intended to draw the attention of the public or
16 a segment thereof to promote or oppose, directly or indirectly, the election
17 of the said candidate or candidates to a public office. In broadcast media,
18 political advertisements may take the form of spots, appearances on
19 television shows and radio programs, live or taped announcements, teasers,
20 and other forms of advertising messages or announcements used by
21 commercial advertisers. Political advertising includes endorsements,
22 statements, declarations, or information graphics, appearing on any internet
23 website, social network, blogging site, and micro-blogging site, which -
24 when taken as a whole - has for its principal object the endorsement of a
25 candidate only, or which were posted in return for consideration or are
26 otherwise capable of pecuniary estimation;

27 (z) *Social media* - refers to the collective of online communication channels,
28 including websites and applications, that enable users to create and share
29 content, collaborate, and interact with each other. For purposes of this Act,
30 video sharing sites which allow users to post comments on individual

1 entries shall be considered as falling within the broad category of "social
2 media";

3 (aa) *Social media account* - refers to a user's personalized access to a social
4 networking site or application, typically using a username and password
5 combination." A social media account allows a user to interact with other
6 users on the same social networking site;

7 (bb) *Social media associates* - refer to contractors whose primary duty is to
8 promote the election or defeat of any candidate through social media
9 interactions and engagement; and

10 (cc) *Social media post* - refers to any text, audio, or graphic content - or any
11 combination thereof- published online using a social media account.

12 (dd) *Soft fakes* - refers to a type of media manipulation that involves subtle and
13 often imperceptible alterations to content, such as editing photos or videos,
14 to influence perceptions or opinions without the more evident distortions
15 characteristic of deepfakes.

16 (ee) *Watermark Technology* - refers to the method of embedding a visible or
17 invisible mark, identifier, or metadata in digital content to indicate
18 authenticity, origin, or ownership for purposes of ensuring the legitimacy
19 of digital provenance.

20 **SEC. 4. Use of the Internet and Social Media as Lawful Election Propaganda. -**

21 Election propaganda on the internet and the social media are hereby allowed for all
22 candidates seeking national and local elective positions, subject to the limitation on
23 authorized expenses of candidates and parties, observation of truth in advertising,
24 and to the supervision and regulation by the COMELEC.

25 Social media posts, regardless of format, whether original or re-posted from
26 some source, which may either be incidental to the poster's advocacies of social issues
27 or which may have, for its primary purpose, the endorsement of a candidate only

1 including paid advertisements in internet subject to the requirements set forth in
2 Section 5 hereof and the Fair Elections Act shall also be allowed.

3 **SEC. 5. *Requirements and/or Limitations on the Use of Election Propaganda***
4 ***through Internet and Social Media.*** - The use of the internet and social media for
5 purposes of election propaganda shall be allowed subject to the following limitations:

6 (a) Each registered political party/coalitions and candidate shall register with
7 the Education and Information Department (EID) of the COMELEC, the
8 website name and web address of all platform-verified official accounts,
9 websites, podcasts, blogs and/or other social media accounts and pages of
10 such political party or candidate within thirty (30) days from the last day of
11 the period for the filing of the Certificates of Candidacy. Websites
12 completing the verification process after the said period and other social
13 media accounts established after the said period must be registered with the
14 COMELEC-EID within five (5) days from its verification or registration;

15 (b) Any other website, blog, or social media page not registered above but
16 which, when taken as a whole, has for its primary purpose the endorsement
17 of a candidate, whether or not directly maintained or administered by the
18 candidate or their official campaign representatives, shall be considered
19 additional official websites, blogs or social media pages of the said
20 candidate, for all regulatory purposes;

21 (c) Only the candidates and their authorized representatives, as well as
22 authorized representatives of registered political parties/ coalitions, and
23 party-list organizations, may submit their registration forms for their official
24 social media accounts and pages, websites, podcasts, blogs/vlogs, and other
25 online and internet-based campaign platforms.

26 Any person or entity other than a candidate or political party, who shall
27 create, or manage similar social media accounts and pages, websites,
28 podcasts, blogs, vlogs, and other online and internet-based campaign
29 platforms primarily designed or used during the election period to solicit

1 votes and promote the election or defeat of a particular candidate or
2 candidates, shall also submit the registration forms and comply with the
3 requirements of this guidelines.

4 Submission shall be made to the EID through the official online channels that
5 will be provided by the COMELEC.

6 (d) In the event of failure to register, the concerned candidate, political party/
7 coalition, party- list organization, and their respective social media
8 campaign managers, shall be required to explain why a complaint for
9 violation of this Act should not be filed against them for their failure to
10 register their social media accounts, websites, digital and internet-based
11 campaign platforms in accordance with this Act. A request for the removal,
12 takedown, or blocking of the said content, social media or digital platforms,
13 or accounts shall also be made by the COMELEC to the technology platforms
14 and providers, and/ or the concerned law enforcement agency.

15 (e) Only verified accounts, websites, blogs, and/or social media pages may run
16 electoral ads, and boost or promote electoral posts;

17 (f) Microtargeting of electoral ads shall not be allowed: *Provided*, That electoral
18 ads can be targeted using only the following criteria: geographical location,
19 except radius around a specific location; age; and gender: *Provided, further*,
20 That contextual targeting options may also be used in combination with the
21 above-mentioned criteria: *Provided, finally*, That processing of personal data
22 should comply with the provisions of Republic Act No. 10173 or the Data
23 Privacy Act of 2012, its Implementing Rules and Regulations and related
24 issuances of the National Privacy Commission;

25 (g) All electoral ads must show a disclosure that identifies who paid for the ad.
26 All electoral posts must show a disclosure that identifies it as a paid electoral
27 ad, and discloses who paid for the ad; and

1 (h) Information contained in online campaign propaganda shall be truthful and
2 not misleading, nor shall it tend to unjustifiably cast doubt on the integrity
3 of the electoral process.

4 **SEC. 6. *Transparency and Disclosure Requirements on the Use of Artificial***
5 ***Intelligence Technology in Election Propaganda and Campaign Materials.*** - The
6 following transparency and disclosure requirements shall be observed on the use of
7 artificial intelligence technology in election propaganda and campaign materials:

8 i. All election propaganda and campaign materials of candidates and
9 political parties, that utilize artificial intelligence technology shall be
10 required to disclose the fact of its use and appropriate technology is
11 employed to identify its authenticity and legitimate source.

12 ii. Disclosures or disclaimers, which shall be clear, conspicuous, and not
13 easily removed or altered, must remain visible or audible for a
14 sufficient duration both before and after the campaign material is
15 presented. The disclosure or disclaimer shall explicitly state that the
16 content has been manipulated using artificial intelligence, providing
17 a detailed explanation of the nature and extent of the manipulation.
18 Additionally, it must include a statement confirming that prior
19 consent has been obtained from all individuals depicted in the AI-
20 manipulated election material. The said disclosure shall be contained
21 in the same campaign material and not in a separate file.

22 Any entity involved in distributing synthetic election-related media
23 is also required to ensure that the media contains the necessary
24 disclosures and disclaimers as mandated.

25 iii. Once an online and digital platform that hosts election-related
26 content has been notified by the COMELEC that media has been
27 manipulated with artificial intelligence technology, they shall be
28 required to implement reasonable mechanisms that disclose the same.
29 Such disclosures must be clearly visible or audible to all audiences,

1 ensuring that viewers or listeners are adequately informed that the
2 content has been altered in compliance with the requirements of these
3 rules.

4 iv. If the COMELEC detects the use of artificial intelligence technology
5 in any campaign material disseminated or published through the
6 social media accounts without any proper disclosures or use of
7 watermark technology as required by the COMELEC, the concerned
8 candidate or party, and their respective social media campaign
9 managers, shall be required to explain why a complaint for violation
10 of these rules should not be filed against them.

11 A request for the removal, takedown, or blocking of the said content,
12 social media or digital platforms, or accounts shall also be made by
13 the COMELEC through the to the technology platforms and
14 providers, and/or the concerned law enforcement agency.

15 **SEC. 6. Regulation of Election Propaganda through Internet and Social Media.**

16 - In all instances, the COMELEC shall supervise the use and employment of online
17 facilities insofar as the placement of political advertisements is concerned to ensure
18 that candidates are given equal opportunity under equal circumstances to make
19 known their qualifications and their stand on public issues within the limits set forth
20 in the Omnibus Election Code, the Fair Election Act, and appropriate rules.

21
22 **SEC. 7. Prohibited Acts Involving Misuse of Social Media, Artificial**
23 **Intelligence and Internet Technology in Digital Election Campaign.** - The following
24 acts, by any individual, shall be considered misuse and malicious use of social media,
25 artificial intelligence, and internet technology, and may constitute an election offense
26 under Section 261 (z) (11) of the OEC, if committed for purposes of propagating
27 disinformation and misinformation to endorse or campaign against a candidate, a
28 political party/coalition, and party-list organizations, and for propagating
29 disinformation or misinformation against the Philippine election system, the

COMELEC, and the electoral processes in the Philippines during the election and campaign period:

- (1) Use of "false amplifiers", such as fake accounts, bots, and astroturf groups filled with fake users to propagate disinformation and misinformation in endorsing or campaigning against a candidate, a political party/coalition, or party-list organizations, or to propagate disinformation, and misinformation targeting the Philippine election system, the COMELEC, and electoral processes during the election and campaign period;
- (2) Coordinated inauthentic behavior and utilization of hyperactive users for the aforementioned purposes;
- (3) Creation and dissemination of deepfakes, cheapfakes, and soft fakes for the aforementioned purposes;
- (4) Use of fake and unregistered social media accounts during the election and campaign period for the same purposes;
- (5) Creation and dissemination of fake news in furtherance of the aforementioned purposes; and
- (6) Use of content produced through AI technology but without compliance to the transparency and disclosure requirements under these guidelines.

SEC. 8. Procedures Upon Detection of Prohibited Acts. - Once the prohibited misuse of social media, artificial intelligence technology, and internet technology is reported to, detected, and monitored by the COMELEC, through its own initiative and monitoring, or through the aid of deputized law enforcement agencies and government instrumentalities, the following shall be immediately undertaken:

- (1) Gathering, documenting, recording, and preserving evidence by the COMELEC;

- 1 (2) Initial validation and investigation of reports, complaints, or detections of
2 the prohibited acts under these rules;
- 3 (3) Issuance of a show cause order to the alleged perpetrator, registered
4 candidate, political party/ coalition, party-list organization, and their
5 respective social media campaign managers;
- 6 (4) Motu proprio filing of an election offense complaint before the Law
7 Department against the Respondent;
- 8 (5) Submission of a request to the technology platform or internet service
9 provider, or a complaint to the National Telecommunications Commission
10 (NTC), Cybercrime Investigation and Coordinating Center (CICC), the NBI
11 Cybercrime Division, the MTRCB, and other relevant government agencies,
12 with a demand for the takedown of the subject content, and the erring social
13 media account, website, or broadcast.

14 A request to the technology platform shall contain, among others:

- 15 (a) the specific provision of the Guidelines violated;
- 16 (b) specific internet addresses, Uniform Resource Locators (URLs) or
17 cyber addresses on the web, websites, or any contents to be blocked,
18 removed, or taken down;
- 19 (c) name and signature of the authorized COMELEC official submitting
20 the request; and
- 21 (d) such other facts as may be necessary to justify the request for
22 takedown;
- 23 (6) In case of a possible violation of other laws such as, but not limited to,
24 Republic Act No. 10173 (Data Privacy Act of 2012), Republic Act No. 10175
25 (Cybercrime Prevention Act of 2012), or the refusal of the concerned
26 technology platform to comply with the demand of the COMELEC to stop

1 the continued disinformation or misinformation, a complaint shall be
2 referred to the relevant agencies for appropriate action; and

3 (7) The immediate debunking of fake news published and disseminated against
4 the Philippine election system, the COMELEC, or the electoral processes,
5 shall also be undertaken through publication by the EID in the official
6 COMELEC website and social media platforms.

7 **SEC. 9. *E-rallies and Livestreams Allowed.*** - Any political party or any
8 candidate, individually or jointly with other aspirants, may hold peaceful online
9 political meetings, rallies or other similar activities during the campaign period. Such
10 online political meetings, rallies, and similar activities are not covered by the
11 limitations on broadcast advertising.

12 Live streaming on the candidates' social media platforms shall be considered a
13 form of e- rally, subject to the following rules:

14 (a) All e-rallies shall include a disclosure that identifies it as a political meeting
15 or rally and providing the relevant date, time, and location information. For
16 this purpose, a live stream on the candidate's social media platforms shall be
17 considered a political meeting or rally;

18 (b) Recordings of e-rallies shall be submitted to the COMELEC within 72 hours
19 from the airing of the same; and

20 (c) Candidates may receive in-platform gifts and game currency but shall not
21 be allowed to give gifts to livestream audiences, nor to run promotions and
22 campaigns that will award in- platform gifts or game currency to platform
23 users and livestream audiences.

24 **SEC. 10. *Prohibition on the Regulation of Legitimate Expressions by Private***
25 ***Individuals.*** - The COMELEC is hereby mandated to regulate expressions of
26 candidates and political parties but shall not in any manner include legitimate
27 expressions by private citizens.

1 Public expressions or opinions or discussions of probable issues in an election
2 or on attributes of or criticisms against candidates shall not be construed as part of any
3 election campaign or partisan political activity.

4 **SEC. 11. *Reporting Requirements to be Submitted by Contractors and Business***
5 ***Firms.*** - Certified true copies of all contracts, reports and receipts, and other
6 documents, accompanied by all its digitization copies, shall be submitted by
7 contractors and business firms to the COMELEC.

8 Every content creator of a post, owner or administrator of any website who airs
9 or shows the political advertisements, without the required data or having false
10 information, in violation of this Act shall be criminally liable with the candidate under
11 Sec. 264 of the Omnibus Election Code and, if applicable, suffer the penalties of
12 suspension or revocation of franchise or permit in accordance with law.

13 Within thirty (30) days after the conduct of the election, every person or firm to
14 whom any payment for electoral expenditure has been made shall file a written report
15 using the prescribed form which shall contain the following information, and
16 accompanied with the official receipts issued to the person with whom the contractor
17 or business firm had transacted:

- 18
- 19 i. The full name of the candidate who incurred such expenditures; .
 - 20 ii. The nature or purpose of each expenditure;
 - 21 iii. The description of the goods or services provided by the contractor or
22 business firm;
 - 23 iv. The date when the expenses were incurred; .
 - 24 v. The amount or cost thereof; and
 - 25 vi. The serial number of the official receipt, cash invoice, or other Bureau of
26 Internal Revenue-approved document issued.
- 27

28 Reportorial requirements shall apply to all contractors and business firms
29 transacting or doing business in the Philippines, whether or not incorporated under
30 the Philippine laws.

1
2 Social media associates, including paid digital influencers and online content
3 creators, who use social media platforms to promote or defeat the election of any
4 candidate, are considered individual contractors subject to reportorial requirements
5 under this Act.

6 Agencies and other intermediaries between the entities producing and placing
7 online political advertisements and the candidate, political party or party-list group
8 shall also submit a similar report.

9 Within the period provided by law, internet companies which include social
10 media companies, transacting or doing business in the Philippines, whether or not
11 incorporated under the Philippine laws, which a candidate or party utilize to directly
12 reach out to voters and mobilize support through the use of ads, paid promoted
13 hashtags/trends, shall provide the COMELEC of the information or documents
14 containing the following:

- 15
16 i. The name of the candidate or party in the advertisement;
17 ii. The name of the person or advertising agency/public relations firm who
18 paid the advertisement;
19 iii. Page Name or Account Name or Handle where the advertisement was
20 posted, originated, or uploaded;
21 iv. The particulars of the political advertisement; and
22 v. The amount or cost of the advertisement

23 **SEC. 12. Election Offense.** - Any violation of the provisions of this Act shall
24 constitute an election offense punishable under the first and second paragraph of
25 Section 264 of Batas Pambansa Blg. 881, otherwise known as the Omnibus Election
26 Code of the Philippines, and other pertinent laws, rules and regulations, whenever
27 applicable. The COMELEC shall, through its duly authorized legal officers, have the
28 power, concurrent with other prosecuting arms of the government, to conduct
29 preliminary investigation of all election offenses and prosecute the same.

1 **SEC. 13. *Right of Reply.*** - Any candidate or person accused of violating any
2 provision of this Act shall be given the right of reply.

3 **SEC. 14. *Authority of the COMELEC to Promulgate Rules.*** - The COMELEC
4 shall promulgate and furnish all political parties and candidates and all concerned
5 entities the rules and regulations for the implementation of this Act, consistent with
6 the criteria established in Article IX-C, Section 4 of the Constitution and Section 86 of
7 the Omnibus Election Code.

8 Rules and regulations promulgated by the COMELEC under and by authority
9 of this Section shall take effect on the seventh day after their publication in at least two
10 (2) daily newspapers of general circulation. Prior to the effectivity of said rules and
11 regulations, no political advertisement or propaganda for or against any candidate or
12 political party shall be published or broadcast through the internet and social media.

13 **SEC. 15. *Separability Clause.*** - In case any provision of this Act is declared
14 invalid or unconstitutional, such declaration shall have no effect in the validity or
15 constitutionality of the remaining provisions hereof.

16 **SEC. 16. *Repealing Clause.*** - All laws, decrees, rules and regulations
17 inconsistent with the provisions of this Act are hereby repealed or amended
18 accordingly.

19 **SEC. 17. *Effectivity.*** - This Act shall take effect fifteen (15) days its after publication
20 in the *Official Gazette* or in a newspaper of general circulation.

21 *Approved,*